

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 07/22/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULINGS
IN DEPARTMENT 16**

Notice is hereby given that the Hon. Benjamin T. Reyes II will be teaching on assignment at the Bernie Witkin Judicial College During the week of July 20, 2026. The Hon. Barry Goode (Ret.), sitting on assignment, will be presiding over the Law & Motion Calendar on July 22, 2026.

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER
NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C23-00009

CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference trails the hearings for Lines 4-6. Counsel are ordered to appear remotely or in-person for the CMC, unless the tentative rulings are unopposed. If the tentative rulings are unopposed, this CMC is vacated and continued to October 15, 2026 at 8:30 a.m.

2. 9:00 AM CASE NUMBER: C25-03259

CASE NAME: BRANDON WOODARD VS. RYAN KIM

***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference trails the hearings for Line 19. Counsel are ordered to appear remotely or in-person for the CMC, unless the tentative ruling is unopposed. If the tentative ruling is unopposed, then no appearance is required and this CMC is continued to April 8, 2027 at 8:30 a.m.

3. 9:00 AM CASE NUMBER: C26-00089

CASE NAME: AARON GUION VS. WATERTON RESIDENTIAL, L.L.C.

***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference trails the hearings for Line 20. Counsel are ordered to appear remotely or in-person for the CMC, unless the tentative ruling is unopposed. If the tentative ruling is unopposed, then no appearance is required and this CMC is continued to November 11, 2026 at 8:30 a.m.

Law & Motion

4. 9:00 AM CASE NUMBER: C23-00009

CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.

**HEARING ON SUMMARY MOTION SUMMARY JUDGMENT/MOTION FOR SUMMARY
ADJUDICATION (SEE 4/29/26 HEARING)**

FILED BY: SKINSPIRIT ESSENTIAL, LLC,

TENTATIVE RULING:

Defendant Skinspirit Essential, LLC. ("Defendant"), brings the instant motion for summary judgment, or in the alternative, summary adjudication ("MSJ"), against the complaint of plaintiff Michelle Daly ("Plaintiff"). This MSJ was originally scheduled to be heard on April 15, 2026. However, Plaintiff filed an opposition that was not substantively on the merits but rather asked the Court for a continuance under Code of Civil Procedure section 473c, subdivision (h), in order to obtain certain discovery that was the subject of future motions to compel, such that a meaningful opposition could be filed. (Mark D. Rosenberg Decl. ISO Opposition to MSJ ("Rosenberg Decl."), ¶¶ 4-29.)

This Motion to Compel Further Responses is set for June 17, 2026, which is after the April 2026 MSJ hearing dates and after the opposition deadlines. As a practical matter, the Court cannot resolve the discovery dispute before Plaintiff must oppose the MSJs under the current schedule, which further supports a continuance under CCP § 437c(h) so discovery can be completed and incorporated into a meaningful opposition.
(Rosenberg Decl., ¶ 19.)